

		“individual PAGA claim.” (Villapudua PAGA Action [ROA 79 at p. 2].) Thus, the carveout language foreclosed arbitration of the sole representative PAGA claim that was at issue. Here, the parties do not argue that Plaintiff Briseno’s PAGA Complaint consists of only a representative PAGA claim. In other words, unlike in the Villapudua PAGA Action, there is an individual PAGA claim in this action that can be compelled to arbitration. Further, in the Villapudua PAGA Action, “[d]espite plaintiff’s identification of this [carveout] issue in her opposition, defendant offered no response to this point in its reply.” (Plaintiff’s RJN, Ex. 1 at pp. 1-2 [emphasis added].) Here, Defendant has provided a substantive response to Plaintiff’s argument. Defendant is ordered to give notice of this ruling.
13	30-2026-01538632 Nunez vs. California Automobile Insurance Company	<u>Motion 1: Defendant’s Requests for Admission, Set One</u> Defendant California Automobile Insurance Company’s (“Defendant”) Motion to Deem Matters Admitted is GRANTED. IT IS ORDERED THAT the truth of any matters specified in Defendant’s Requests for Admission, Set One be deemed admitted. On March 11, 2026, Defendant served written discovery on Plaintiff’s attorney of record. (Sarni Dec. ¶ 2.) On May 6, 2026, Jorge Vera with Plaintiff’s counsel’s office requested a three-week extension of time to respond. (Sarni Dec. ¶ 4.) By email dated May 6, 2026, Defendant agreed to provide a two-week extension of time, up to and including May 20, 2026 for Plaintiff to respond to all pending discovery. (Sarni Dec. ¶ 4.) On May 20, 2026, Plaintiff did not provide any responses and also did not seek a further extension of time. (Sarni Dec. ¶ 5.) Despite remainders from Defendant, to date, Plaintiff has not provided any discovery responses. (Sarni Dec. ¶ 7.) This Motion is unopposed. “If a party to whom requests for admission are directed fails to serve a timely response . . . [t]he party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product[.]” (CCP § 2033.280(a).) “The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction[.]” (CCP § 2033.280(b).) “The

		court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (CCP § 2033.280(c).) “It is mandatory that the court impose a monetary sanction . . . on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (<i>Id.</i>) Based on the foregoing, it is mandatory that the court grant this Motion and Defendant’s request for monetary sanctions. However, as this Motion was unopposed, only \$610.00 in attorney’s fees have been incurred for this Motion. (Sarni Dec. ¶ 8 [stating that attorney’s fees are estimated to be \$1,220.00 based on 2 hours preparing motion and 2 hours preparing a reply and appearing at the hearing].) Thus, the court GRANTS IN PART Defendant’s request for monetary sanctions. IT IS ORDERED THAT within sixty (60) days of this ruling, sanctions in the amount of \$610.00 is payable jointly and severally by Plaintiff and Plaintiff’s counsel to Defendant. <u>Motion 2: Defendant’s Requests for Production of Documents, Set One</u> Defendant’s Motion to Compel Responses to Requests for Production of Documents, Set One is GRANTED. IT IS ORDERED THAT within thirty (30) days of this ruling, Plaintiff shall provide Defendant with complete, code-compliant responses to Defendant’s Requests for Production of Documents, Set One, without objections, and all responsive documents. “If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it . . . [t]he party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product.” (CCP § 2031.300(a).) “The party making the demand may move for an order compelling response to the demand.” (CCP § 2031.300(b).) “Failing to respond or to submit to an authorized method of discovery” is a misuse of discovery subject to monetary sanctions. (CCP § 2023.010(d), 2023.030(a).) As stated above, Plaintiff failed to respond to Defendant’s Requests for Production of Documents, Set One, and thus this Motion is granted.
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	However, as this Motion was unopposed, only \$610.00 in attorney's fees have been incurred for this Motion. (Sarni Dec. ¶ 8 [stating that attorney's fees are estimated to be \$1,220.00 based on 2 hours preparing motion and 2 hours preparing a reply and appearing at the hearing].) Thus, the court GRANTS IN PART Defendant's request for monetary sanctions. IT IS ORDERED THAT within sixty (60) days of this ruling, sanctions in the amount of \$610.00 is payable jointly and severally by Plaintiff and Plaintiff's counsel to Defendant. <u>Motion 3: Defendant's Special Interrogatories, Set One</u> Defendant's Motion to Compel Responses to Special Interrogatories, Set One, is GRANTED. IT IS ORDERED THAT within thirty (30) days of this ruling, Plaintiff shall provide Defendant with complete, code-compliant responses to Defendant's Special Interrogatories, Set One, without objections. "If a party to whom interrogatories are directed fails to serve a timely response . . . [t]he party to whom the interrogatories are directed waives any right to exercise the option to produce writings . . . as well as any objection to the interrogatories, including one based on privilege or on the protection for work product[.]" (CCP § 2030.290(a).) "Failing to respond or to submit to an authorized method of discovery" is a misuse of discovery subject to monetary sanctions. (CCP § 2023.010(d), 2023.030(a).) As stated above, Plaintiff failed to respond to Defendant's Special Interrogatories, Set One, and thus this Motion is granted. However, as this Motion was unopposed, only \$610.00 in attorney's fees have been incurred for this Motion. (Sarni Dec. ¶ 8 [stating that attorney's fees are estimated to be \$1,220.00 based on 2 hours preparing motion and 2 hours preparing a reply and appearing at the hearing].) Thus, the court GRANTS IN PART Defendant's request for monetary sanctions. IT IS ORDERED THAT within sixty (60) days of this ruling, sanctions in the amount of \$610.00 is payable jointly and severally by Plaintiff and Plaintiff's counsel to Defendant. <u>Motion 4: Defendant's Form Interrogatories, Set One</u> Defendant's Motion to Compel Responses to Form Interrogatories, Set One, is GRANTED. IT IS ORDERED THAT within thirty (30) days of this ruling, Plaintiff shall
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		provide Defendant with complete, code-compliant responses to Defendant’s Form Interrogatories, Set One, without objections. “If a party to whom interrogatories are directed fails to serve a timely response . . . [t]he party to whom the interrogatories are directed waives any right to exercise the option to produce writings . . . as well as any objection to the interrogatories, including one based on privilege or on the protection for work product[.]” (CCP § 2030.290(a).) “Failing to respond or to submit to an authorized method of discovery” is a misuse of discovery subject to monetary sanctions. (CCP § 2023.010(d), 2023.030(a).) As stated above, Plaintiff failed to respond to Defendant’s Form Interrogatories, Set One, and thus this Motion is granted. However, as this Motion was unopposed, only \$610.00 in attorney’s fees have been incurred for this Motion. (Sarni Dec. ¶ 8 [stating that attorney’s fees are estimated to be \$1,220.00 based on 2 hours preparing motion and 2 hours preparing a reply and appearing at the hearing].) Thus, the court GRANTS IN PART Defendant’s request for monetary sanctions. IT IS ORDERED THAT within sixty (60) days of this ruling, sanctions in the amount of \$610.00 is payable jointly and severally by Plaintiff and Plaintiff’s counsel to Defendant. Defendant is ordered to give notice of this ruling to Plaintiff.
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